IN THE NATIONAL COMPANY LAW TRIBUNAL
HYDERABAD BENCH – 1
VC AND PHYSCIAL (HYBRID) MODE

ATTENDANCE CUM ORDER SHEET OF THE HEARING HELD ON
29-07-2025 AT **02:00 PM**

CA (CAA) No. 35/230/HDB/ 2025
U/s. 230 of Companies Act, 2013

IN THE MATTER OF:
M/s. EMIS Health India Pvt., Ltd., Represented by Ms. Aparna Kumari - Authorized Signatory (Transferor Company) & M/s. Optum Global Solutions (India) Pvt., Ltd., (Transferee Co.,), Represented by Mr. Kuldeep Sharma - Authorized Signatory **...Petitioner**

CORAM:-
SH. RAMMURTI KUSHAWAHA, HON'BLE MEMBER (JUDICIAL)
SH. MAN MOHAN GUPTA, HON'BLE MEMBER (TECHNICAL)

ORDER

Learned Counsel Mr. R Inba Raju for the Petitioner present through video conference.

The order is pronounced in open court, recorded vide separate sheets. In the result, **CA(CAA) No. 35/230/HDB/2025 is allowed,** subject to the directions mentioned in the order.

SD/-
MAN MOHAN GUPTA
MEMBER (T)

SD/-
RAMMURTI KUSHAWAHA
MEMBER (J)

Siva/Manohar

NATIONAL COMPANY LAW TRIBUNAL
BENCH-1 HYDERABAD

CA (CAA) No. 35/230/HDB/2025

Application under Section 230-232 of the Companies Act, 2013

IN THE MATTER OF SCHEME OF AMALGAMATION BETWEEN

EMIS HEALTH INDIA PRIVATE LIMITED
(TRANSFEROR COMPANY)

AND

OPTUM GLOBAL SOLUTIONS (INDIA) PRIVATE LIMITED
(TRANSFEREE COMPANY)

EMIS HEALTH INDIA PRIVATE LIMITED
[CIN: U72900TS2015FTC195809]
Registered Office at 303, Block A,
Legend Commercial Complex,
3-4-770 & 136a, Barkatpura,
Himayathnagar, Hyderabad,
Telangana – 500 027.

…Transferor Company /
Applicant Company No.1

OPTUM GLOBAL SOLUTIONS (INDIA) PRIVATE LIMITED
[CIN: U72900TG2010PTC067943]
Registered Office AT 3rd to 6th Floor,
Building No.H06A, Avance Business Hub,
Hitec City 2, Gachibowli, Serilingampalli,
Cyberabad, Shaikpet, Hyderabad,
Telangana – 500 081.

…Transferee Company /
Applicant Company No.2

Date of order: 29.07.2025

CORAM
SHRI RAMMURTI KUSHAWAHA, HON'BLE MEMBER JUDICIAL
SHRI MAN MOHAN GUPTA, HON'BLE MEMBER TECHNICAL

Appearance:

For Applicant Companies : Shri R Inbaraju, Advocate

PER: BENCH

ORDER

1. This Joint Application is filed by the Applicant Company No.1 (Transferor Company) and the Applicant Company No.2 (Transferee Company) under Sections 230 to 232 of the Companies Act, 2013, seeking dispensation of the meetings of the Equity Shareholders of both Applicant Companies, as well as dispensation of the meeting of the Unsecured Creditors of the Transferee Company (Applicant Company No.2), in connection with the proposed Scheme of Amalgamation.

2. The gist of the averments in brief are: -

2.1 <u>PARTICULARS OF TRANSFEROR COMPANY / APPLICANT NO.1</u>

(A) **EMIS Health India Private Limited** (**Applicant No. 1 / Transferor Company**) was incorporated on 10th August, 2015 under the provisions of the Companies Act, 2013 having CIN No. U72900TN2015FTC101749 in the State of Tamil Nadu. Subsequently, the Company shifted its registered office from the State of Tamil Nadu to the State of Telangana. The fresh Certificate of Incorporation was issued on 20th March, 2025 with CIN No. U72900TS2015FTC195809 **(Annexure-1).**

(B) The Applicant Company No.1 / Transferor Company is engaged in the business of software designing, development, customization, implementation, maintenance, design, develop, import, export, distribute, and deal in computer software, hardware, IT solutions, and related services including web-based applications and offshore

development, providing IT-enabled services such as BPO, data processing, transcription, HR/payroll, and database management. To offer turnkey and end-to-end technology solutions, systems integration, consultancy, and network/data centre management, both onsite and offshore.

(C) The Authorized, Subscribed, Issued and Paid-Up Share Capital of the Applicant Company No.1 / Transferor Company as on **31st March, 2025** is as follows:

Authorized Share Capital	**Amount (in Rs.)**
10,000 Equity Shares of Rs.10/- each	1,00,000
Total	**1,00,000**
Issued, Subscribed and Paid-Up Share Capital	**Amount (in Rs.)**
10,000 Equity Shares of Rs.10/- each	1,00,000
Total	**1,00,000**

There has been no change in the share capital structure of the Transferor Company / Applicant Company No.1 from 31st March 2025 up to the date of filing this Application.

A copy of the Audited Financial Statements of the Transferor Company / Applicant Company No.1 as on 31st March 2024 is annexed to the Application and marked as **Annexure-4**.

2.2 <u>PARTICULARS OF THE TRANSFEREE COMPANY / APPLICANT COMPANY NO.2</u>

(A) **OPTUM GLOBAL SOLUTIONS (INDIA) PRIVATE LIMITED** (**Transferee Company / Applicant Company No. 2**) was initially incorporated under the provisions of the Companies Act, 1956 under the name and style as **"QSSI Technologies India Private Limited"** on 15th April, 2010. Subsequently, on 12th July, 2016 the company changed

its name from **"QSSI Technologies India Private Limited"** to **"Optum Global Solutions (India) Private Limited"** with CIN: U72900TG2010PTC067943 with the Registered office in the State of Telangana. The fresh certificate of incorporation pursuant to change of name is annexed and marked as **Annexure-6.**

(B) The Transferee Company / Applicant Company No.2 is engaged in the business of providing IT and IT-enabled services including software development, system integration, BPO/KPO, and consultancy across sectors, offering healthcare IT solutions, data processing, cloud services, analytics, and infrastructure support. It is further engaged in research, training, manpower outsourcing, and development of digital tools and applications.

(C) The Authorized, Subscribed, Issued and Paid-Up Share Capital of the Applicant Company No.2 / Transferee Company as on **31st March, 2025** is as follows:

Authorized Share Capital	**Amount (in Rs.)**
2,05,72,500 Equity Shares of Rs.10/- each	20,57,25,000
Total	**20,57,25,000**
Issued, Subscribed and Paid-up Share Capital	**Amount (in Rs.)**
11,15,794 Equity Shares of Rs.10/- each fully paid-up	1,11,57,940
Total	**1,11,57,940**

There has been no change in the share capital structure of the Transferee Company / Applicant Company No.2 subsequent to 31st March 2025 till the date of filing of the Application.

A copy of the Audited Financial Statements of the Transferee Company / Applicant Company No.2 as on 31st March 2024 is annexed to the Application and marked as **Annexure-9**.

3. **CONSENT OF THE BOARD OF DIRECTORS OF THE APPLICANT COMPANIES**:

The Board of Directors of the Applicant Companies, at their respective meetings held on 10th June 2025 (for Applicant Company No.2 / Transferee Company) and 12th June 2025 (for Applicant Company No.1 / Transferor Company), have approved the Scheme of Amalgamation between EMIS Health India Private Limited (Transferor Company / Applicant Company No.1) and Optum Global Solutions (India) Private Limited (Transferee Company / Applicant Company No.2), along with their respective Shareholders and Creditors, under Sections 230 to 232 and other applicable provisions of the Companies Act, 2013, read with the rules made thereunder. The Scheme is proposed to take effect from the Appointed Date, i.e., 1st April 2025.

Certified true copies of the Board Resolutions passed by the Board of Directors of Applicant Companies are annexed and marked as **Annexure-11** and **Annexure-12**, respectively.

4. RATIONALE BEHIND THE AMALGAMATION:

The Applicant Companies submit that the rationale behind the amalgamation, *inter-alia,* have the following benefits:-

(i) More efficient utilization of financial, managerial and technical resources by accessing the common talent pool, resources and marketing and service delivery capabilities, which would result in cost efficiencies and consequently better growth opportunities for the combined entity – thereby leading to better creation of shareholder value.

(ii) Consolidation of India operations of the Transferor Company and Transferee Company to facilitate better management and focus over combined business operations.

(iii) Drive synergies and economies of scale resulting from the merger, which would result in the enhancement of the talent pool for providing better services to the customers of the combined entity.

(iv) Simplification of the corporate structure thereby eliminating corporate redundancies, such as duplicate work streams related to corporate governance, compliances and risk management, due to reduction in the number of operating entities and further creating operational and financial efficiencies.

(v) Facilitate rebranding of India's consolidated business operations to align it with the "Optum" brand name which represents the service business segment of the UHG group

(vi) Achievement of greater management focus and control over the combined business operations.

5. DETAILS OF SHAREHOLDERS & CREDITORS OF APPLICANT COMPANIES (AS ON 31.05.2025):

The details of Equity Shareholders and Creditors of the Applicant Companies, the consent Affidavits and the Auditor's certificate is shown in the table below:-

Details of Shareholders/ Creditors and consent affidavits	**Transferor Company/ Applicant No.1**	**Transferee Company/ Applicant No.2**
Shareholders & % of consent affidavits filed	**02 (two) shareholders (100% consent affidavits annexed at page No. 315-326)** (Certificate issued by B. Sujeet & Co, dated 13.06.2025 certifying the list of Equity Shareholders is annexed at Page-314)	**02 (two) shareholders (100% consent affidavits available at page No. 330-351)** (Certificate issued by KBG Associates, dated 23.06.2025 certifying the list of shareholders is annexed at Page-328-329)
Secured Creditors	**NIL** (Certificate issued by B. Sujeet & Co, dated 13.06.2025 certifying	**NIL** (Certificate issued by KBG Associates, dated 23.06.2025

	"Nil" Secured Creditor is annexed at Page- 327)	certifying Nil Secured Creditor is annexed at Page-352)
Unsecured Creditors & % of consent affidavits filed	**NIL** (Certificate issued by B. Sujeet & Co, dated 13.06.2025 certifying "Nil" Secured Creditor is annexed at Page- 327)	**07 (Seven) Unsecured Creditors (100% consent Affidavits available at page Nos. 355-395)** (certificate issued by RRKV & Associates dated 07.07.2025 certifying list of Unsecured Creditors is annexed at page 353-354)

6. <u>CONSIDERATION:</u>

Upon the Scheme becoming effective, no consideration shall be payable for the transfer and vesting of the amalgamation of the Applicant Company No.1 / Transferor Company into the Applicant Company No.2 / Transferee Company, as the Transferor Company is a wholly-owned subsidiary of the Transferee Company. Consequently, the entire shareholding of the Transferor Company held by the Transferee Company (whether directly or through its nominee shareholder, United Health International Inc.) shall stand cancelled without any further act or deed upon the Scheme taking effect.

Furthermore, upon the Scheme becoming effective, the Authorised Share Capital of the Transferor Company / Applicant Company No.1 shall stand merged with and be deemed to form part of the Authorised Share Capital of the Transferee Company / Applicant Company No.2, without any further act, instrument or deed. Accordingly, upon effectiveness of the Scheme, the Authorised Share Capital of the Transferee Company/Applicant No.2 shall be **Rs. 20,58,25,000/-** (Rupees Twenty Crores Fifty-Eight Lakhs Twenty-Five Thousand only), divided into **2,05,82,500 (Two Crores Five Lakhs Eighty-Two Thousand Five Hundred) Equity Shares of Rs.10/- each**.

7. ACCOUNTING TREATMENT:

It is stated that the accounting treatment provided under the Scheme of Amalgamation is in accordance with the Accounting Standards prescribed under Section 133 of the Companies Act, 2013. The Auditor's Certificate issued to the Transferor Company / Applicant Company No.1 and the Transferee Company / Applicant Company No.2, confirming that the accounting treatment contemplated in the Scheme complies with the requirements of Section 133 of the Companies Act, 2013, are annexed and marked as **Annexure-22** and **Annexure-23**, respectively.

8. DECLARATION BY THE APPLICANT COMPANIES:

Further the Applicant Companies affirm that: -

(a) No investigation, litigation, or proceeding is pending against the Applicant Companies under the Companies Act, 1956 or the Companies Act, 2013, which may have any material bearing on the sanction of the Scheme.

(b) There are no proceedings pending against the Applicant Companies under the Insolvency and Bankruptcy Code, 2016. Affidavits confirming the same have been filed by the Applicant Companies and are annexed and marked as Annexure-24 and Annexure-25, respectively.

(c) No winding up petition (including those filed under Section 433 read with Section 434 of the Companies Act, 1956) or proceedings under the Insolvency and Bankruptcy Code, 2016 have been filed, instituted, or are pending against either of the Applicant Companies.

(d) The proposed Scheme is not prejudicial to the interests of their respective Equity Shareholders or Creditors and will be beneficial to both the Applicant Companies and their stakeholders.

9. <u>OUR OBSERVATIONS:</u>

We have heard the Learned Counsel for the Applicant Companies. Upon review of the documents placed on record, including the Scheme of Amalgamation, financial statements, auditor's certificates, consent affidavits, and other supporting materials, we have made the following observations in relation to the proposed Scheme:

(i) This is the first stage joint Application seeking dispensation of the meetings of the Equity Shareholders Secured Creditors and Unsecured Creditors of both the Applicant Companies.

(ii) Section 230(1) of the Companies Act, 2013 contemplates the convening of meetings of creditors or members, as the case may be, unless at least 90% in value of the creditors or members, as the case may be, provide their consent in writing, by way of affidavits, to dispense with such meetings.

(iii) In the instant case, it is observed that: -

(a) The Equity Shareholders of the Applicant Companies i.e. the Transferor and Transferee Companies have given their consent Affidavits for the Scheme.

(b) There are no Secured Creditors in either the Applicant Company No.1 / Transferor Company or the Applicant Company No.2 / Transferee Company, and hence the question of convening or dispensing with meetings of Secured Creditors does not arise.

(c) There are no unsecured creditors in Transferor Company / Applicant Company No.1. However, the Transferee Company / Applicant Company No.2 has **7 (seven)** Unsecured Creditors. All the 7 (seven) Unsecured Creditors of the Transferee Company/Applicant Company No.2 have also given their consent Affidavits for the Scheme.

(iv) The Applicant Companies have affirmed that they are in compliance with all applicable provisions of the Companies Act, 2013, and the rules made thereunder. Considering that the dispensation of the meetings in question would not prejudice or prevent any aggrieved party from approaching this Hon'ble Tribunal at an appropriate stage, particularly when the Scheme is taken up for final approval, this Tribunal is of the view that the prayer for dispensation of convening meetings of the Shareholders of both the Applicant Companies, as well as the meeting of Unsecured Creditors of the Applicant Company No.2/Transferee Company, deserves to be allowed.

10. We, therefore, accordingly allow the Joint Company application as follows;

(a) The requirement to convene the meeting of the **Equity Shareholders** of the Applicant Company No.1 / Transferor Company is hereby dispensed with.

(b) The requirement to convene the meeting of the **Equity Shareholders** and **Unsecured Creditors** of the Applicant Company No.2 / Transferee Company is hereby dispensed with.

(c) The Applicant Companies are directed to file a petition seeking sanction of the Scheme of Amalgamation in accordance with law.

11. The Joint Company application CA(CAA)No.35/230/HDB/2025 is disposed of accordingly.

Sd/-
(Man Mohan Gupta)
Member (Technical)

Sd/-
(Rammurti Kushawaha)
Member (Judicial)

M. J. Saida